

12.	24PR0065	ESTATE OF JAMES HAYNES
STATUS OF ADMINISTRATION / FINAL DISTRIBUTION HEARING		

Before the Court are two matters: 1) Status of Administration; and 2) Final Distribution Hearing.

STATUS OF ADMINISTRATION

This matter was continued from August 10, 2026. The tentative ruling issued on August 10, 2026, remains in effect.

FINAL DISTRIBUTION HEARING

This matter was continued from August 17, 2026. The tentative ruling issued on August 17, 2026, is amended as follows:

At the hearing on the Petition for Final Distribution on June 15, 2026, the Court ordered Petitioner to fix the deficiencies listed in the tentative ruling and continued the hearing to August 17, 2026.

On July 8, 2026, Petitioner filed a Declaration and various documents within, including an updated Petition for Final Discharge, Receipts of Distribution for both beneficiaries, and an updated Inventory and Appriasal.

On September 4, 2026, Petitioner filed a Declaration containing supplemental documentation pursuant to the Court's identified deficiencies within the August 17, 2026, tentative ruling, including Proof of Service by Mail, H&R Block Tax Documentation, and Waiver of Notice.

Letters of Administration/Letters Testamentary were issued on May 20, 2024, granting Petitioner full authority under the Independent Administration of Estates Act.

An updated Final Inventory and Appraisal was included within the Declaration. The Declaration clarified that the estate consisted of one savings account held at Golden 1 Credit Union, which had a balance of \$263,191.18 at the time of death. Decedent owed no real property at the time of death and thereby no change of ownership statement was filed as provided in section 480 of the California Revenue and Taxation Code.

Waivers of Account and Waivers of Notice were executed by all the heirs entitled to distributions under the estate.

Proof of Service of notice of the hearing on the Petition was filed on September 4, 2026. No one has filed a request for special notice in this proceeding.

September 21, 2026
Dept. 9
Probate Tentative Rulings

The proposed distribution of the estate provides that the estate consists of cash in the amount of \$263,191.18 which has been fully distributed to the beneficiaries.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

3. That no federal or California estate taxes are payable or that they have been paid;
4. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

The updated Petition confirms all debts, expenses, and obligations of the estate have been paid. In addition, Petitioner provided to the Court a separate note confirming no federal or California estate or income taxes are payable.

The Petition requests:

1. Approve the final distribution of the estate;
2. Discharge Petitioner as Executor;
3. Release the bond (if any); and
4. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #12:

1. STATUS OF ADMINISTRATION

THE TENTATIVE RULING ISSUED ON AUGUST 10, 2026, REMAINS IN EFFECT.

2. FINAL DISTRIBUTION HEARING

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, AUGUST 9, 2027, IN DEPARTMENT NINE BY WHICH TIME THE COURT EXPECTS RECEIPTS AND AN EX PARTE PETITION FOR FINAL DISCHARGE (JUDICIAL COUNCIL FORM DE-295) TO BE FILED WITH THE COURT. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.